



CHAPTER xv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Harbour and Tay Ferries. A.D. 1925.
[9th April 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Dundee Harbour and Tay Ferries Order Confirmation Act 1925. Short title.

A.D. 1925.

SCHEDULE.

DUNDEE HARBOUR AND TAY FERRIES.

Provisional Order to authorise the Trustees of the Harbour of Dundee to borrow additional money and for other purposes.

WHEREAS by the Dundee Harbour and Tay Ferries Consolidation Act 1911 (hereinafter referred to as "the Act of 1911") the Acts relating to the harbour of Dundee and the Tay Ferries were consolidated with amendments and the Trustees of the harbour of Dundee were reconstituted and reincorporated and the harbour and Tay Ferries undertakings were vested in the Trustees so reincorporated (hereinafter called "the Trustees") all as therein mentioned :

And whereas by virtue of the powers conferred on the Trustees by the Dundee Harbour and Tay Ferries Acts 1911 to 1919 the Trustees manage maintain work and use the said harbour and the Tay Ferries and levy charge and recover tolls dues rates duties and charges in respect of the use thereof :

And whereas by the Act of 1911 general powers were conferred on the Trustees for the construction and maintenance of works at the harbour and the Trustees were by the Act of 1911 and by the Dundee Harbour and Tay Ferries Order 1917 authorised to borrow for those purposes and the general purposes of the harbour other than the Tay Ferries on the security of the rates and the other revenues of the harbour and the rates authorised to be levied at the Tay Ferries the sum of three hundred thousand pounds in addition to the sum of forty-five thousand two hundred and eight pounds sixteen shillings and threepence being the sum remaining unborrowed under the Acts relating to the harbour in force immediately previous to the commencement of the Act of 1911 :

And whereas the Trustees have in the exercise of the said powers borrowed the sum of three hundred and eleven thousand one hundred and thirty pounds nineteen shillings and nine pence for the said purposes

and have expended the same in connection with the harbour and the unexercised borrowing powers of the Trustees for harbour purposes amounted as at the twenty-eighth day of February one thousand nine hundred and twenty-five to the sum of thirty-four thousand and seventy-seven pounds sixteen shillings and sixpence : A.D. 1925.

And whereas the said amount of the unexercised borrowing powers of the Trustees is insufficient for carrying out the powers conferred on them by the Act of 1911 and for meeting the growing demands of the trade and shipping of the harbour and providing for the increased and increasing size of cargo vessels and for providing additional shed accommodation and crane equipment and for the other requirements of the harbour and it is expedient that the Trustees should be authorised to borrow further money for those purposes as hereinafter in this Order provided :

And whereas by the Act of 1911 powers were conferred upon the Trustees for the maintenance and improvement of works at the Tay Ferries and the Trustees were authorised to borrow for the purposes of the Tay Ferries on the security of the Tay Ferries rates by that Act authorised to be levied and the rates and revenues of the harbour the sum of fifteen thousand four hundred and sixty-five pounds and fivepence being the sum remaining unborrowed under the Act relating to the Tay Ferries in force immediately previous to the commencement of the Act of 1911 :

And whereas the Trustees have borrowed and expended in connection with the Tay Ferries the said sum of fifteen thousand four hundred and sixty-five pounds and fivepence and also an additional sum of three thousand eight hundred and forty-two pounds eighteen shillings and fivepence :

And whereas in order to enable the Trustees to carry out the powers in connection with the Tay Ferries conferred on them by the Act of 1911 and to meet the growing requirements of the traffic at the Tay Ferries it is expedient that the Trustees should be authorised to borrow further money for those purposes as hereinafter in this Order provided :

And whereas it is expedient that the accumulated amount of the reserve fund authorised by the Act of

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Tay Ferries Order Confirmation Act, 1925.

A.D. 1925. 1911 should be increased as hereinafter in this Order provided :

And whereas it is expedient that certain of the rates leviable by the Trustees should be modified as hereinafter in this Order provided :

And whereas it is expedient that the total annual amount of allowances and donations authorised by the Act of 1911 should be increased and that the Trustees should be empowered to make allowances to officials and servants whether in the exclusive service of the Trustees or not all as hereinafter in this Order provided :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short titles
and com-
mencement
of Order.

1. This Order may be cited as the Dundee Harbour and Tay Ferries Order 1925 and shall commence and have effect from and after the date of the passing of the Act confirming the same. The Dundee Harbour and Tay Ferries Acts 1911 to 1919 and this Order may be cited together as the Dundee Harbour and Tay Ferries Acts 1911 to 1925.

Incorporation of
Acts.

2. Subject to the provisions of this Order section 5 (Incorporation of provisions of Harbours Clauses Act) and section 7 (Incorporation of provisions of Commissioners Clauses Act) of the Act of 1911 shall so far as applicable and not varied by or inconsistent with this Order apply for the purposes of this Order as if they had been re-enacted herein.

Interpretation.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Dundee Harbour and Tay Ferries Acts 1911 to 1919 or any of them have the same respective meanings. And the expressions :—

“ The Act of 1911 ” means the Dundee Harbour and Tay Ferries Consolidation Act 1911 ;

“The Harbour Acts” means the Dundee Harbour and Tay Ferries Acts 1911 to 1919 and this Order. A.D. 1925.
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4. The Trustees may (in addition to the sums already borrowed or authorised to be borrowed by them) from time to time borrow :— Power to borrow money.

(a) For the purpose of exercising the powers conferred on the Trustees by the Act of 1911 in connection with the harbour other than the Tay Ferries any sum or sums of money not exceeding in the whole the sum of two hundred thousand pounds;

(b) For the purpose of exercising the powers conferred on the Trustees by the Act of 1911 in connection with the Tay Ferries any sum or sums of money not exceeding in the whole the sum of fifty thousand pounds; and

(c) For paying the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order the amount necessary therefor.

5.—(1) Subject to the provisions of this Order sections 168 to 177 and sections 179 to 185 all inclusive of the Act of 1911 shall mutatis mutandis apply to the money authorised to be borrowed by the Trustees under paragraphs (a) and (c) of the immediately preceding section of this Order. Application of certain provisions of Act of 1911.

(2) Subject to the provisions of this Order sections 208 to 215 both inclusive of the Act of 1911 shall mutatis mutandis apply to the money authorised to be borrowed by the Trustees under paragraph (b) of the immediately preceding section of this Order:

Provided that nothing contained in section 214 (Application of funds and revenues) of the Act of 1911 shall authorise or be deemed to authorise the Trustees to apply any money authorised to be borrowed by the Trustees under the said paragraph (b) to the working or maintaining of the Tay Ferries.

6. From and after the commencement of this Order section 178 (Application of revenues of harbour) of the Application of revenues of harbour.

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A.D. 1925. — Act of 1911 shall be and the same is hereby repealed and the following provisions shall apply and have effect in lieu thereof:—

The revenue received from rates or otherwise under the Harbour Acts in respect of the harbour shall be applicable for the purposes and in the order following and not otherwise:—

- (1) In payment of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order;
- (2) In payment of the expense properly chargeable to revenue of the maintenance repair management and working of the harbour and all conveniences connected therewith;
- (3) In payment of any deficit incurred in the maintenance repair management and working of the Tay Ferries and all conveniences connected therewith;
- (4) In payment year by year of the interest accruing on money borrowed under the Harbour Acts;
- (5) In payment of the instalments as they become due in discharge of any money so borrowed and repayable by instalments and in forming sinking funds in accordance with the Harbour Acts for payment of principal moneys borrowed under the said Acts;
- (6) In making such payments (if any) as the Trustees think fit into contingency funds to meet any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the harbour and in making payments to the reserve fund established under the provisions of section 183 (Reserve Fund) of the Act of 1911 :

The surplus (if any) after providing for the purposes aforesaid shall be applied for such purposes (not being capital purposes) as shall from time to time appear to the Trustees expedient.

Amend-
ment of sec-
tion 183 of
Act of 1911.

7. From and after the commencement of this Order section 183 (Reserve fund) of the Act of 1911 shall be read and construed as if the words "twenty thousand

pounds ” were omitted therefrom and the words “ forty thousand pounds ” were inserted therein in lieu thereof. A.D. 1925. —

8. From and after the commencement of this Order section 231 (Allowances and donations) of the Act of 1911 shall be read and construed as if the words “ one thousand pounds ” were omitted therefrom and the words “ two thousand pounds ” were inserted therein in lieu thereof and as if the word “ exclusive ” were omitted therefrom. Amend-
ment of sec-
tion 231 of
Act of 1911.

9. From and after the commencement of this Order Schedule (B) of the Act of 1911 shall be read and construed as if the following words were inserted in Part I. (Foreign) of the said schedule immediately after paragraph 7 thereof:— Amend-
ment of
Schedule
(B) of Act
of 1911.

“ 8. All vessels inwards from foreign ports landing
“ cattle only shall in respect of the inward
“ voyage be charged one half of the rates for
“ which they would otherwise be liable under
“ this schedule Provided that the expression
“ ‘ cattle only ’ shall be deemed to include cattle
“ manure surplus food stuffs for the cattle
“ landed and fittings used for such cattle.”

10. From and after the commencement of this Order section 62 (Annual account to be sent to the Board of Trade) of the Act of 1911 shall be and the same is hereby repealed and the following provisions shall apply and have effect in lieu thereof:— Annual
account to
be sent to
Ministry of
Transport.

- (1) The Trustees shall within three months after the date to which their annual accounts are made up send a copy of the same to the Ministry of Transport and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account;
- (2) The Trustees shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section;
- (3) The account shall be made up to the end of the thirty-first day of May in each year.

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Pay Ferries Order Confirmation Act, 1925.

A.D. 1925.

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Provision
as to
Merchant
Shipping
Acts &c.

11. Nothing contained in this Order shall exempt the Trustees from the provisions of the Merchant Shipping Acts 1894 to 1916 or of any general Act relating to harbours or to dues on shipping or on goods carried in ships now in force or which may be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised by the Harbour Acts.

Costs of
Order.

12. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees out of the moneys to be borrowed and received under the authority of the Harbour Acts or out of the rates to be levied under the Harbour Acts or other revenues of the Trustees. Provided that if the said costs charges and expenses be paid out of borrowed money the same shall be repaid within five years from the commencement of this Order.

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